

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
URALICE BRANCH,

Plaintiff,

Index No.:

VERIFIED
COMPLAINT

-against-

JURY TRIAL
DEMANDED

THE CITY OF NEW YORK, DETECTIVE WINSTON
MCDONALD (NYPD) TAX #943545, SERGEANT
ROLETTE CORDERO (NYPD) TAX # 925119,
OFFICER(S) JOHN DOE(S) #1-20 (THE NAME JOHN DOE
BEING FICTITIOUS, AS THE TRUE NAME(S) IS/ARE
PRESENTLY UNKNOWN),

Defendants.

-----X

The Plaintiff, complaining by her attorney(s) at the LAW OFFICE OF ANDREW L.
HOFFMAN, P.C., respectfully shows to this Court and alleges:

INTRODUCTION

1. This is an action to vindicate the rights of Uralice Branch, a 56-year-old wife and mother, with no criminal or arrest record, who was traumatized after members of the New York City Police Department (“NYPD”) broke through her front door and forced their way in, absent permission or authority.
2. On the date in question, Ms. Branch was home alone, relaxing in her bedroom, when police began breaking through her door with a battering ram.
3. Upon entering, the officers announced that they had a search warrant and handcuffed Ms. Branch, demanding to know if she had any teenagers living with her.

4. Ms. Branch, who lived only with her husband (a working professional who likewise had no criminal or arrest record), explained that she had no teenagers living with her, and that none ever visited. She also explained that her adult daughter (a working professional with no criminal or arrest record) did not live at the residence.

5. Impervious to this information, the team of John Doe officers, led by Detective McDonald and Sergeant Cordero, spent the next 25 minutes emptying Ms. Branch's drawers, and rifling through her cupboards, closets, and drawers, apparently determined to find something—anything—to justify what had obviously been a wrongful entry.

6. At one point, a John Doe officer found some mothballs in Ms. Branch's clothing drawer, and with an accusatory tone, demanded to know what they were. Ms. Branch explained that mothballs are something people use to protect their clothing.

7. When the police finally gave up and began to leave, one of them complimented Ms. Branch on her tastefully decorated home, as if just completing a social visit.

8. When Ms. Branch asked to see a copy of the officers' alleged search warrant, her request was denied.

9. After the officers left, Ms. Branch was so shaken, and felt so violated, that she immediately washed all of the clothing they had touched. Yet nothing could wash away the stain of the officers' wrongful invasion of her home.

10. The individual Defendants in this case are now being sued for their respective roles in the violation of Ms. Branch's rights.

11. The City of New York is being sued for failing to properly train, supervise, and/or discipline New York City police officers, and for continuing to tolerate and defend a widely publicized departmental culture of willful indifference toward the rights of citizens.

THE PARTIES

12. At all times relevant herein, Plaintiff, URALICE BRANCH, was a resident of Brooklyn, New York.

13. Upon information and belief, at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and that at all times relevant all Defendant officers were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

14. Upon information and belief, at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK, its agents, servants, and employees, operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

15. Upon information and belief, at all times hereinafter mentioned, Defendant DETECTIVE MCDONALD,¹ Defendant SERGEANT CORDERO² and POLICE OFFICER(S) DOE #1-20³ were employed by the Defendant CITY OF NEW YORK, as members of its police department.

16. Upon information and belief, at all times hereinafter mentioned, all Defendant Police Officers, be they known or unknown, were assigned to Narcotics Borough Brooklyn South, in the City of New York.,

¹ McDonald has been named as a defendant in at least three other police misconduct suits. (See Ramirez v. City of New York, et al., 14-CV-04187; Nisimov v. City of New York, et al., 14-CV-04237; and Fedd v. City of New York, et al., 15-CV-04015.

² Cordero has been named as a defendant in at least one other police misconduct suit. (See Soares v. City of New York, et al., 14-CV-04221.

³ Plaintiff's diligent search for the identity of all officers involved remains ongoing. Accordingly, the Corporation Counsel is on notice that the plaintiff intends to name every officer involved as defendants once their identities are revealed through discovery. All appropriate steps to prepare the officers' defenses and otherwise inform them that they will be individually named should be undertaken forthwith.

17. The New York City Police Department is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the police chief of the New York City Police Department is responsible for the policies, practices, and customs of the New York City Police Department as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees, and is the final decision maker for that agency.

18. This action arises under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983, the rights guaranteed by the Constitution, and the laws of the State of New York.

19. Individual Defendants in this action are being sued in both their individual and official capacities.

VENUE AND JURISDICTION

20. Upon information and belief, all of the complained of actions listed herein occurred in Kings County; as such, pursuant to CPLR §504(3), Kings County is an appropriate venue for this action. The amount of damages sought in each claim of this action exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

STATEMENT OF FACTS

21. The claim arose on September 22, 2017 at about 4:57 PM, at the Plaintiff's residence, located at 196 Rockaway Parkway, Apt. 5C, Brooklyn, NY 11212.

22. At the above time and place, Plaintiff Uralice Branch, age 56, who had no prior criminal or arrest record, was in her bedroom relaxing and watching a movie. Suddenly, she heard a terrifying crash against the front door of her apartment.

23. She then ran to her kitchen and viewed a monitor synced to a security camera positioned outside of her apartment door.

24. It appeared that a team of heavily fortified police were trying to knock her front door down with a battering ram.

25. Ms. Branch ran to her door and started screaming that the officers should stop, and that there must be some mistake.

26. Impervious to her cries, the officers continued crashing the battering ram into the front door until they broke it open, entered, said they were executing a search warrant, and forcibly handcuffed Ms. Branch, injuring her shoulder.

27. Upon entering, the officers spent approximately the next 25 minutes emptying her drawers, and going through cupboards, drawers, and closets, with the apparent presumption that she was secreting some sort of contraband.

28. As they searched, officers continued to ask Ms. Branch who she lived with, and specifically, whether any teenagers lived with her.

29. One officer found mothballs in her clothing drawer, and with an accusatory tone, demanded to know what they were.

30. A terrified Ms. Branch explained: she lived with her husband, a working professional with no criminal or arrest record. She also volunteered that her only child (a 26-year-old, college-educated, working professional daughter with no criminal or arrest record) had not lived in the home for months, and when she did, no teenagers visited her. The mothballs, she

explained, were used to protect her clothing.

31. In sum, fully *nothing* about what officers found inside of Ms. Branch's apartment was consistent with "teenagers," or criminal activity of any kind—and the officers had every reason to know it. Yet instead of apologizing, offering to fix the door, and leaving, the officers continued their wrongful and invasive search, seemingly determined to find *something* to justify their conduct.

32. Clearly, the officers had entered the wrong apartment.

33. Upon information and belief, this was the result of officers lying on the warrant affidavit to get a warrant issued, and/or failing to properly verify/corroborate obviously incorrect information from an informant before including it in the warrant affidavit, and/or unreasonably relying on the word of an unreliable informant, yet nevertheless portraying it as reliable in the warrant affidavit.

34. When the officers finally gave up and left, Ms. Branch asked to see a copy of the alleged warrant—but her request was refused.

35. Following the wrongful invasion of her home, Ms. Branch was so shaken, and felt so violated, that she undertook to wash all of the clothing that the officers had touched.

36. Ms. Branch also filed claims with the Citizen's Complaint Review Board⁴ and the Internal Affairs Bureau, as she is determined to do everything she can ensure that whatever led officers to wrongfully enter her home is corrected, and other citizens are not forced to endure a similar trauma.

⁴ Citing the existence of a warrant, the C.C.R.B. did not substantiate Ms. Branch's claims. However, C.C.R.B. team manager, Ethan De Angelo, also admitted to Plaintiff's counsel that no effort was made to obtain and review the warrant affidavit for truthfulness and accuracy, and no queries were made regarding the veracity or role that any confidential informant(s) may have played. Amazingly, the C.C.R.B. simply noted the existence of a warrant, and ceased its investigation—subjecting the officers' conduct to no additional "review."

37. Ms. Branch now demands accountability for the wrongful invasion and search of her home, as the emotional and psychological effects of her ordeal continue to this day.

AS AND FOR THE FIRST CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
AGAINST ALL INDIVIDUAL DEFENDANTS

Violation of Constitutional Rights Under Color of State Law
-Warrantless Entry and Search of Home-

38. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 37.

39. The Fourth Amendment of the United States Constitution protects citizens from unreasonable searches and seizures by government officials. Specifically, the Fourth Amendment precludes police officers from entering and otherwise searching someone's home in the absence of appropriate process—e.g., a warrant—or special circumstances.

40. Defendant officers' entry into the home of the Plaintiff, and especially the search of the apartment occupied by Ms. Branch, in the absence of permission, a legitimate warrant, or exigent circumstance, was clearly improper and represents a violation of the Plaintiff's rights under the Fourth Amendment of the United States Constitution.

41. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.

42. Defendants' actions were motivated by bad faith and malice.

43. As a direct and proximate result of the unconstitutional acts described above, Ms. Branch has been substantially injured.

AS AND FOR THE SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
AGAINST ALL INDIVIDUAL DEFENDANTS
Violation of Constitutional Rights Under Color of State Law
-Failure to Intervene-

44. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 43.

45. The Fourth Amendment of the United States Constitution protects citizens from unreasonable searches and seizures by government officials, and prohibits law enforcement officers from entering private residences without the appropriate authorization.

46. The actions of Defendant officers detailed above violated the Plaintiff's rights under the United States Constitution. It is widely recognized that all law enforcement officials have an affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

47. Defendants' actions were motivated by bad faith and malice, and/or deliberate indifference to the rights of the Plaintiff.

48. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.

49. As a direct and proximate result of the unconstitutional acts described above, the Plaintiff has been substantially injured.

AS AND FOR THE THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
AGAINST DEFENDANT CITY OF NEW YORK

- Implementation of Municipal Policies, Practices, and Customs that Directly Violate Constitutional Rights, Failure to Implement Municipal Policies to Avoid Constitutional Deprivations and Failure to Train and Supervise Employees Under Color of State Law-

50. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 49.

51. Upon information and belief, Defendant Supervisors McDonald, Cordero, and Doe were directly responsible for supervising Defendants John Doe(s) #1 – 20.

52. Upon information and belief, said supervisors and final decision makers, as a matter of policy, practice, and custom, have acted with a callous, reckless and deliberate indifference to the Plaintiff's constitutional rights and laws of the United States, in that they failed to adequately discipline, train, supervise or otherwise direct police officers concerning the rights of citizens, including not making warrantless entries and searches of people's homes.

53. In the alternative, and upon information and belief, Defendants instituted policies addressing the topics listed above, but through a culture of gross negligence, carelessness, and malice displayed by New York City police officers, demonstrated a deliberate and willful indifference to the constitutional rights of the Plaintiff.

54. Upon information and belief, in 2011, Kings County District Attorney Charles Hynes created the Conviction Integrity Unit in response to an ever-increasing number of wrongful convictions.

55. Upon information and belief, in or about July of 2013, the Kings County District Attorney's efforts substantially expanded, as the office announced the formation of an unprecedented panel of former prosecutors, professors, and retired judges to review as many as 50 convictions involving a former Kings County detective, Louis Scarcella, who is alleged to have regularly sought false statements from witnesses, and whose work appears to have sent an array of innocent citizens to prison.

56. Upon information and belief, another former Kings County Detective, Michael Race, whose work has also been linked to the conviction of innocents, has been quoted in press accounts as stating that of the 750 murder investigations he ran, only one was “done the correct way, A to Z.”

57. Long time Kings County District Attorney Charles Hynes was voted out of office amidst widespread⁵ allegations of misconduct.

58. In August of 2013, federal Judge Shira A. Scheindlin of the Southern District of New York found the New York City Police Department resorted to a “policy of indirect racial profiling” as officers routinely stopped “blacks and Hispanics who would not have been stopped if they were white.” The Plaintiff in this case is a person of color.

59. It is also true that following the landmark Floyd v. City of New York, 959 F.Supp. 2d 540 (S.D.N.Y. 2013), Judge Scheindlin appointed a monitor to oversee the N.Y.P.D.’s compliance with Court Ordered remedies. (Id. at 543.) While the “stop and frisk” in Floyd is not specifically at issue in the present case, the related issue of inadequate monitoring and supervision of officers certainly is—and it is notable that the N.Y.P.D. monitor’s most recent (2/16/2016) report emphasized that departmental reforms “need[] to be communicated and reinforced better, not just at the top, but throughout the Department.... Ultimately, this is a challenge of leadership, particularly for those who supervise officers engaged in day-to-day enforcement activities—sergeants, their immediate supervisors, and the precinct and unit

⁵ See e.g., Charles Hynes, Scandal-Plagued District Attorney, Faces Verdict at the Polls, ProPublica, September 6, 2013, available at http://www.huffingtonpost.com/2013/09/06/charles-hynes-brooklyn-district-attorney-election_n_3881395.html; Brooklyn DA Charles Hynes in the Hot Seat for Protecting Prosecutor Who Imprisoned Innocent Man, New York Daily News, November 16, 2012, available at <http://www.nydailynews.com/new-york/brooklyn-da-charles-hynes-hot-seat-wrongful-conviction-article-1.1203342>; Ex-Brooklyn Prosecutor Charles J. Hynes Accused of Misuses of Funds, New York Times, available at <http://www.nytimes.com/2014/06/03/nyregion/charles-hynes-brooklyn-district-attorney-inquiry.html>.

commanders who set the tone for those under them. This challenge implicates every aspect of the court orders and the parties' agreements, and it will not be met without changes in policies, training, supervision, and all the ways the NYPD incentivizes good police behavior and discourages unacceptable behavior. This is a large task that will take time and substantial effort to accomplish."

60. The nature, regularity, and scale of such revelations, and the extraordinary efforts being undertaken in response to a highly publicized slew of wrongful convictions, gives rise to an inference of systemic incompetence and corruption on the part of the New York City Police Department, as such a legacy of injustices cannot plausibly be laid at the feet of a few rogue officers.

61. The policies, procedures, customs and practices of the above-named Defendants violated the Constitutional rights of the Plaintiff under the Fourth Amendment of the United States Constitution.

62. This conduct on the part of Defendants City of New York and Supervisors Doe also represents a violation of 42 U.S.C § 1983, given that said actions were undertaken under color of state law.

63. As a direct and proximate result of the unconstitutional acts described above, the Ms. Branch has been substantially injured.

STATE CLAIMS

64. Notice of the Plaintiff's claim, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was timely served upon the Comptroller of

the City of New York and assigned Claim No. 2017PI032215.

65. Plaintiff was produced for a hearing pursuant to Section 50h of the General Municipal Law on March 5, 2018.

66. More than 30 days have elapsed since the Notice of Claim was served upon the Defendant City of New York and said Defendant has neglected to initiate any settlements thereof.

67. This action is being commenced within One Year and Ninety-Days of the date the cause of action arose.

AS AND FOR THE FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
AGAINST ALL INDIVIDUAL DEFENDANTS

-Trespass-

68. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 67.

69. Defendants, without consent or legitimate authority, and against the will of the Plaintiff, intentionally entered the Plaintiff's property by forcing their way into her home at gun point.

70. The forceful entry occurred when Defendants burst through the front door of the premises.

71. As a direct and proximate result of the Defendants' conduct as described above, the Plaintiff has been substantially injured.

AS AND FOR THE FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
AGAINST ALL INDIVIDUAL DEFENDANTS

-Negligent Infliction of Emotional Distress-

72. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 71.

73. As a direct and proximate result of the Defendants' outrageous departure from accepted standards of care, Plaintiff was caused to suffer severe emotional distress.

AS AND FOR THE SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
AGAINST ALL DEFENDANTS

-Negligence-

74. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 73.

75. At all relevant times, Defendants owed Ms. Branch a common law duty to use reasonable care in carrying out their business of policing.

76. Defendants breached their duty of reasonable care to the Plaintiff by executing a search warrant on the wrong apartment, then seeking to justify their mistake by finding something—anything—to justify their wrongful intrusion.

77. As a result of the aforescribed, Ms. Branch has been substantially damaged.

AS AND FOR THE SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
AGAINST THE DEFENDANT SUPERVISORS AND THE CITY OF NEW YORK

-Negligent Hiring, Retention, and Supervision-

78. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 77.

79. At all times relevant, Defendants were negligent, careless, and reckless in hiring, retaining, supervising, and promoting as and for its employees, “the officers” herein, in that said officers, as employees of the City of New York, were not qualified to be hired or retained or promoted as police officers, lacked the experience, deportment, skill, training, and ability to be employed by the Defendant City of New York; to be retained by the Defendant City of New York; and to be utilized in the manner that each was employed on the day in question.

80. At all times relevant, Defendants failed to exercise due care and caution in its hiring, retaining, and/or promoting practices; in that the Defendant City of New York failed to adequately investigate said police officers’ backgrounds; adequately screen and test the Defendant police officers; failed to adequately monitor the Defendant police officers; failed to properly discipline officers who violate Patrol Guidelines; failed to properly train and retrain the Defendant police officers; and the Defendant City of New York, its agents, servants, and/or employees, were otherwise careless, negligent, and reckless.

81. The aforesaid occurrence and the resulting injuries to the Plaintiff, were caused wholly and solely by reason of the negligence or deliberate indifference of the Defendant City of New York, its agents, servants, and/or employees without any negligence on the part of the Plaintiff contributing thereto.

82. That by reason of the aforesaid, Ms. Branch has been substantially damaged.

DEMAND FOR TRIAL BY JURY

83. The Plaintiff hereby demands a trial by jury.

PRAYER FOR RELIEF

WHEREFORE, the Plaintiff URALICE BRANCH requests that this Honorable Court grant her the following relief:

- A. A judgment in favor of Plaintiff against Defendants for compensatory damages in an amount to be determined by a properly charged jury;
- B. A judgment in favor of Plaintiff against all Defendants but the City of New York for punitive damages in an amount to be determined by a properly charged jury;
- C. A monetary award for attorney's fees and costs of this action, pursuant to 42 U.S.C. § 1988;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: New York, New York
December 4, 2018

Respectfully Submitted By:

/s/

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ATTORNEY'S VERIFICATION

STATE OF NEW YORK)

SS.:

COUNTY OF NEW YORK)

I, the undersigned, am an attorney admitted to practice in the Courts of the State of New York, say that:

I am associated with the attorney of record for the Plaintiff, The Law Office of Andrew L. Hoffman, PC, 261 Madison Avenue, 12th FL, New York, New York 10016.

I have read the foregoing Verified Complaint and knows the contents thereof; that and the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and, as to those matters I believe them to be true.

My belief as to those matters therein not stated upon knowledge is based on investigation, correspondence, conferences and all facts, data, information, reports, statements, etc. in our file pertaining to this matter.

The reason I make this Affirmation instead of the Plaintiff is that the Plaintiff is not within the county where Affirmant maintains his office.

I affirm that the foregoing statements are true under penalties of perjury.

Dated: New York, New York

December 4, 2018

/s

Andrew L. Hoffman, Esq.